

HOUSE BILL 1727

By Hakeem

AN ACT to amend Tennessee Code Annotated, Title 5;
Title 6; Title 7; Title 8; Title 49 and Title 50, relative
to employee leave.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 5-23-112, is amended by deleting the
section and substituting:

5-23-112. Required leave for qualifying medical emergencies.

(a) As used in this section:

(1) "Birth" has the same meaning as "live birth" as defined in § 68-3-102;

(2) "Family member" means an employee's child, spouse, parent, or a
grandchild if the employee requesting the leave is the grandparent and the
employee has custody of the grandchild at the time leave is requested;

(3) "Qualifying medical emergency" means:

(A) The birth of a child;

(B) The stillbirth of a child;

(C) Caring for a family member who has a serious health
condition; or

(D) The employee's serious health condition;

(4) "Serious health condition" has the same meaning as defined under 29
CFR 825.113; and

(5) "Stillbirth" has the same meaning as defined in § 68-3-102.

(b) Notwithstanding another law to the contrary, beginning January 1, 2027, a
county shall include in the county's base personnel policy a policy that allows a county

employee to take unpaid job-protected leave in the event of a qualifying medical emergency if:

(1) The county employee:

(A) Has been employed by the county for not less than eleven (11) months and three (3) weeks consecutively and during the period immediately preceding the application for leave;

(B) Would otherwise be eligible for leave under the federal Family and Medical Leave Act (FMLA) (29 U.S.C. § 2601, et seq.), including by having met the hours-of-service requirement for such leave; and

(C) Provides written notice as soon as practicable of the need for leave; and

(2)

(A) The county employee does not otherwise have sick leave, annual leave, or another job-protected category of leave available for use for the qualifying medical emergency prior to the county employee's eligibility for the leave required under the FMLA; or

(B) The county for which the county employee works does not provide job-protected leave as a benefit of employment.

(c) The policy required under subsection (b) must allow the county employee to begin utilizing the leave required under the FMLA if the county employee becomes eligible for FMLA leave while on leave granted pursuant to subsection (b).

5-23-113. Applicability.

This chapter supersedes any conflicting general laws or private acts; provided, that except as provided under § 5-23-112, this chapter does not apply to any county with a population over eight hundred thousand (800,000), according to the 2000 federal

census or any subsequent federal census, or any county that has adopted a metropolitan form of government.

SECTION 2. Tennessee Code Annotated, Section 6-54-123, is amended by designating the existing language as subsection (a) and adding the following as a new subsection:

(b)

(1) As used in this subsection (b):

(A) "Birth" has the same meaning as "live birth" as defined in § 68-3-102;

(B) "Family member" means an employee's child, spouse, parent, or a grandchild if the employee requesting the leave is the grandparent and the employee has custody of the grandchild at the time leave is requested;

(C) "Qualifying medical emergency" means:

(i) The birth of a child;

(ii) The stillbirth of a child;

(iii) Caring for the spouse, or a son, daughter, or parent, of the employee, if such spouse, son, daughter, or parent has a serious health condition; or

(iv) The employee's serious health condition;

(D) "Serious health condition" has the same meaning as defined under 29 CFR 825.113; and

(E) "Stillbirth" has the same meaning as defined in § 68-3-102.

(2) Beginning January 1, 2027, a municipality shall include in the municipality's personnel policy a policy that allows a municipal employee to take unpaid job-protected leave in the event of a qualifying medical emergency if:

(A) The municipal employee:

(i) Has been employed by the municipality for not less than eleven (11) months and three (3) weeks consecutively and during the period immediately preceding the application for leave;

(ii) Would otherwise be eligible for leave under the federal Family and Medical Leave Act (FMLA) (29 U.S.C. § 2601, et seq.), including by having met the hours-of-service requirement for such leave; and

(iii) Provides written notice as soon as practicable of the need for leave; and

(B)

(i) The employee does not otherwise have sick leave, annual leave, or another job-protected category of leave available for use for the qualifying medical emergency prior to the employee's eligibility for the leave required under the FMLA; or

(ii) The municipality for which the employee works does not provide job-protected leave as a benefit of employment.

(3) The policy required under subdivision (b)(2) must allow a municipal government employee to begin utilizing the leave required under the FMLA if the municipal employee becomes eligible for FMLA leave while on leave granted pursuant to subdivision (b)(2).

SECTION 3. Tennessee Code Annotated, Title 7, Chapter 3, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Birth" has the same meaning as "live birth" as defined in § 68-3-102;

(2) "Family member" means an employee's child, spouse, parent, or a grandchild if the employee requesting the leave is the grandparent and the employee has custody of the grandchild at the time leave is requested;

(3) "Qualifying medical emergency" means:

(A) The birth of a child;

(B) The stillbirth of a child;

(C) Caring for the spouse, or a son, daughter, or parent, of the employee, if such spouse, son, daughter, or parent has a serious health condition; or

(D) The employee's serious health condition;

(4) "Serious health condition" has the same meaning as defined under 29 CFR 825.113; and

(5) "Stillbirth" has the same meaning as defined in § 68-3-102.

(b) Beginning January 1, 2027, a metropolitan government shall include in the metropolitan government's personnel policy a policy that allows a metropolitan government employee to take unpaid job-protected leave in the event of a qualifying medical emergency if:

(1) The metropolitan government employee:

(A) Has been employed by the local government for not less than eleven (11) months and three (3) weeks consecutively and during the period immediately preceding the application for leave;

(B) Would otherwise be eligible for leave under the federal Family and Medical Leave Act (FMLA) (29 U.S.C. § 2601, et seq.), including by having met the hours-of-service requirement for such leave; and

(C) Provides written notice as soon as practicable of the need for leave; and

(2)

(A) The employee does not otherwise have sick leave, annual leave, or another job-protected category of leave available for use for the qualifying medical emergency prior to the employee's eligibility for the leave required under the FMLA; or

(B) The metropolitan government for which the employee works does not provide job-protected leave as a benefit of employment.

(c) The policy required under subsection (b) must allow a metropolitan government employee to begin utilizing the leave required under the FMLA if the metropolitan government employee becomes eligible for FMLA leave while on leave granted pursuant to subsection (b).

SECTION 4. Tennessee Code Annotated, Section 8-50-814(a), is amended by adding the following as new subdivisions:

() "Family member" means an employee's child, spouse, parent, or a grandchild if the employee requesting the leave is the grandparent and the employee has custody of the grandchild at the time leave is requested;

() "Otherwise eligible employee" means a teacher, principal, supervisor, or other individual required by law to hold a valid license of qualification for employment in the public schools of this state and who meets the following requirements:

(A) Has a valid license of qualification, or an emergency credential issued by the department of education pursuant to § 49-5-106, required for the position the employee holds;

(B) Has been employed full time with the same local education agency or public charter school for not less than eleven (11) months and three (3) weeks and would otherwise be eligible for leave under the federal Family and Medical Leave Act (FMLA) (29 U.S.C. § 2601, et seq.), including by having met the hours-of-service requirement for such leave; and

(C) Has held a valid license of qualification or an emergency credential issued by the department of education pursuant to § 49-5-106, for the entire duration of employment with the local education agency or public charter school;

() "Qualifying medical emergency" means:

(A) The birth of a child;

(B) The stillbirth of a child;

(C) Caring for a family member who has a serious health condition; or

(D) The employee's serious health condition;

() "Serious health condition" has the same meaning as defined under 29 CFR 825.113;

SECTION 5. Tennessee Code Annotated, Section 8-50-814, is amended by adding the following as a new subsection:

(h)

(1) In addition to the policy required under subdivision (d)(2), on and after January 1, 2027, each local board of education and public charter school governing body shall include in the LEA's or public charter school governing body's leave policy a policy that allows an otherwise eligible employee to take unpaid job-protected leave in the event of a qualifying medical emergency if the otherwise eligible employee:

(A) Provides written notice as soon as practicable of the need for leave; and

(B) The otherwise eligible employee does not have sick leave, annual leave, or another job-protected category of leave available for use for the qualifying medical emergency prior to the employee's eligibility for the leave required under the FMLA.

(2) The policy required under subdivision (h)(1) must allow an otherwise eligible employee who becomes an eligible employee during the period of leave required under subdivision (h)(1) to begin utilizing the paid leave required under this section once the employee becomes an eligible employee.

SECTION 6. Tennessee Code Annotated, Section 8-50-814(c), is amended by deleting "The leave granted pursuant to this section" and substituting "Except as provided in subsection (h), the leave granted pursuant to this section".

SECTION 7 This act takes effect upon becoming a law, the public welfare requiring it.